

Contentious Chamber

Decision 160/2023 of December 1, 2023

File Number: DOS-2023-03285

Subject: Settlement decision following a complaint regarding cookies on IPM Group websites (websites "La Libre" and "dhnet")

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), (hereinafter "GDPR");

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Considering the Internal Rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Ms. X, [...], represented by noyb – European Center for Digital Rights, [...], hereinafter "the complainant";

The settling party:

S.A. IPM GROUP, whose registered office is located at [...], represented by Me Frédéric DECHAMPS and Me Maxime ADAM, whose office is located at [...], hereinafter: "the settling party".

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I.

Preliminary procedure for the settlement

I.1. The complaints

1.

On July 19, 2023, the complainant, through her representative, filed two complaints with the Data Protection Authority (hereinafter "DPA") against the settling party.

2.

The subject of the two complaints concerns several elements related to the implementation of cookies on the websites "<https://www.lalibre.be/>" and "<https://www.dhnet.be/>" of the settling party (hereinafter "the websites" or "the disputed sites"). The two complaints have almost identical content and were filed by the same complainant. The complainant refers to the legislation she deems relevant regarding consent. The complaints mention "deceptive cookie banners" and "obscure models." The complaints also reference reports and communications from both the European Data Protection Board (hereinafter "EDPB") and the Belgian DPA regarding obligations related to the implementation of cookies involving the processing of personal data.

3.

More specifically, the complainant alleges four practices on the aforementioned websites that she finds objectionable. First, the absence of a "reject" option at the first level of information of the cookie banner. Second, that the "cookie banner" uses "deceptive button colors." Third, the complaints indicate that "withdrawing consent is not as easy as giving it." Finally, the fourth grievance of the complainant questions the legality of the "reference to legitimate interest" on the websites.

4.

On August 4, 2023, the DPA's Frontline Service (hereinafter "SPL") contacted the complainant to request information "regarding the complainant's interest in filing the complaint." Subsequently, exchanges took place between the complainant's representative and the SPL regarding this issue.

5.

On August 25, 2023, both complaints were declared admissible by the SPL under Articles 58 and 60 of the LCA and were transferred to a file in the Contentious Chamber under Article 62(1) of the LCA.

1 During the procedure, it was mentioned that the complaints were initially filed on July 18, as indicated in the complaints filed by the complainant herself. However, it should be noted that the complaints did not officially reach the DPA until the following day.

2 In particular, Article 10/2 of the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, M.B. 05/09/2018 (implementing provisions of the "e-Privacy Directive") and Article 6.1.a. of the GDPR.

3 In accordance with Article 61 of the LCA, the Contentious Chamber informs the parties that the complaint has been declared admissible.

4 In accordance with Article 95 §2 of the LCA, the Contentious Chamber informs the parties that the file has been transmitted to it following this complaint.

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6.

On September 1, 2023, the representative of the complainant submitted a document to the SPL explaining in more detail the complainant's interest.

7.

In the document dated September 1, 2023, the representative of the complainant refers to the admissibility conditions set out in the LCA - which the complaint meets - and states that "the reason why the frontline service of your authority is requesting further justification of the complainant's interest in filing complaints is not clear to [the representative]." The representative emphasizes that the complainant's data has indeed been processed and that the complainant is a data subject within the meaning of the GDPR.

8.

As part of an efficient procedure, the Contentious Chamber does not further pursue the examination of aspects related to the complainant's interest that have already been addressed in communications between the representative of the complainant and the SPL.

I.2. The Transaction Proposal

9.

On September 21, 2023, the Contentious Chamber sent a letter to the representative of the complainant and to the party in transaction, informing them of its intention to propose a transaction, in accordance with Article 95, § 1, 2° of the LCA. The notification also mentions that the Contentious Chamber - through this communication - considers that the deadline for appealing to the Inspection Service under Article 96, § 1 of the LCA is interrupted. From this moment on, the parties also have the opportunity to consult the administrative file, a request they both subsequently make.

10.

On October 20, 2023, the transaction proposal was transmitted to the party in transaction and to the complainant. The content of this transaction proposal is fully reproduced in the annex of this transaction decision and is an integral part thereof.⁵ In particular, this transaction proposal includes all conditions - procedural and substantive - as well as the deadlines to which the parties must respectively respond.

I.3. The Complainant's Response

11.

On October 30, 2023, the representative of the complainant sent a letter to the Contentious Chamber. On November 3, 2023, the representative of the complainant also forwarded the letter to the party in transaction, as it was not clear to him that he should also provide it to the party in transaction.

5 However, it should be noted that an "erratum" was inserted at point f), the initial text incorrectly stating "(in this case, there is no complaint at the basis of the file)."

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12.

In response to the transaction proposal, the complainant requests clarifications and/or adjustments on several "points." The complainant concludes with the following paragraph: "The complainant emphasizes that if the content of the transaction proposal is modified in favor of the defendant party [party in transaction] or if the aforementioned requests of the complainant are not fully satisfied, the complainant will be compelled to appeal the formal transaction decision."

13.

The Contentious Chamber reiterates - in the interest of decision clarity - the requests of the complainant stated in section II of this decision, and then the Contentious Chamber responds in concreto to the requests.

14.

On November 6, 2023, the Contentious Chamber responds by confirming that the transaction proposal will not be modified in accordance with the requests of the complainant. However, the Contentious Chamber specifies that it intends to publish the decision without omitting the identifying data of the party in transaction, in accordance with Article 95, §1, 8° of the LCA.

I.4. The Requests of the Party in Transaction and the Conclusion of the Transaction

15.

On November 17, 2023, the party in transaction confirms that it fully accepts all the conditions of the transaction proposal. On November 20, 2023, the Contentious Chamber confirms that the notification from the party in transaction formalizes the conclusion of a transaction, thus leading to this transaction decision.

II. Conditions of the Transaction and Grounds for Rejecting the Complainant's Requests

II.1. General Considerations

16.

During the transaction procedure, no modifications were made to the terms of the transaction as stated in the transaction proposal. These terms remain fully valid under the transaction. Although they are not repeated in this section, they are annexed to this decision.

17.

The Contentious Chamber further specifies that the acceptance of a transaction proposal shall in no case be interpreted as an admission of guilt, and therefore cannot be used as an aggravating circumstance to determine sanctions in future proceedings before the Contentious Chamber.

18.

The Contentious Chamber specifies that, in the interest of proper procedure, the transaction procedure is divided into two distinct stages, namely the transaction proposal on the one hand, and the transaction decision on the other. This clear division allows all parties to...

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the parties concerned to clearly understand the starting and stopping points of the procedure, while retaining the possibility to appeal at each stage through the inclusion of appeal clauses. This approach also aims to promote transparency in the transaction process, a principle to which the Contentious Chamber fully adheres.

19.

Finally, this decision is a *prima facie* decision made by the Contentious Chamber in accordance with Article 95 of the LCA based on the complaint filed by the complainant, within the framework of the "preliminary procedure prior to the decision on the merits"⁶ and not a decision on the merits of the Contentious Chamber in the sense of Article 100 of the LCA.

II.2. Requests of the complainant rejected

20. The complainant made several requests to the Contentious Chamber, which did not result in a modification of the transaction proposal. However, the Contentious Chamber will proceed to publish this transaction decision on the website of the Data Protection Authority (see section III of this decision), in accordance with the complainant's request, which constitutes a distinct decision from the transaction under Article 95, §1, 8° of the LCA.

21.

The Contentious Chamber outlines below the reasons why the other requests are not retained. It should be noted that these reasons are incorporated into this decision, so they clearly fit within the

framework of the generally established procedural economy.

22.

First, regarding the first and fifth conditions of the transaction proposal, the complainant requests "[to] explicitly add to the first condition and the fifth condition of the transaction proposal that this condition means that the 'reject all' option must be provided on the same, first 'layer' as the 'accept and close' option."

•

The Contentious Chamber rejects this request for the following reason. It is not clear how this request would lead to a materially different outcome on the disputed sites compared to the current wording of the first and fifth conditions. The Contentious Chamber believes that the proposed modification would not improve the stipulated condition (cf. section c.1. of the transaction proposal).

23.

Secondly, regarding the second condition, the complainant requests "[to] explicitly add to the second condition and the sixth condition of the transaction proposal that the display 'not less (visually) appealing' includes, but is not limited to, the fact that the 'reject all' option and the 'accept and close' option must have the same size, the same color, the same shape, the same contrast, and the same location of the button/option."

•

The Contentious Chamber rejects this request for the following reason. It is neither for the Contentious Chamber nor for the complainant to determine that the buttons must have (exactly) the same characteristics. This choice belongs to the data controller. It is true that buttons with exactly the same characteristics are clearly identical for the purposes of consent. Conversely, it is not excluded that the data controller may decide to make the 'reject all' option more appealing or innovate in the use of colors (which, for example, display essentially equivalent options) to facilitate the choice of the data subject. The condition formulated more generally in the transaction proposal regarding the display "not less (visually) appealing" is therefore sufficient for the Contentious Chamber.

24.

Thirdly, regarding the third condition, the complainant proposes the following text modification:

"The defendant commits to develop and implement, within one month, a mechanism on the website of '[website name] [sic]' that complies with the requirements set out in the aforementioned policy documents, aimed at achieving an equivalent outcome. The data controller also guarantees that the procedure for withdrawing consent (the withdrawal of consent) will not require more steps (in terms of 'clicks') than those required to give consent. A permanently visible and visually identifiable option must be available on all pages of the website to reopen cookie settings with a single click. The same number of steps for withdrawing consent will be counted from the moment the end user reopens the cookie settings. This will be done by following an equivalent number of steps from the moment the end user reaches the cookie settings page, which must be clearly accessible from all pages of the website in question. All technical modifications made by the defendant for this purpose must be recorded in a summary document, which will be prepared during implementation and submitted to the Contentious Chamber and the complainant. The implementation of these technical modifications, as well as the preparation and submission of the summary document, must be completed within [sic] one month from the transaction decision." (The underlined part is not included in the current proposals)

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The Contentious Chamber fully rejects this request for modification of the condition for the following reason. The Contentious Chamber takes note of the complainant's viewpoint that they wish for a "permanently visible option and...

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"visually identifiable" on all web pages of the disputed sites. The Contentious Chamber, seeking to reach a reasonable and technically feasible settlement, considers that it is not appropriate to require such modifications as part of a settlement.

25.

Fourthly, the complainant requests that an "injunction to cease illegal processing" be added to the settlement, which should be worded as follows:

"The responsible party commits to delete all personal data processed due to cookies that were not placed in accordance with the content of this formal settlement decision on the DH web sites (<https://www.dhnet.be>) and La Libre (<https://www.lalibre.be>), and to communicate this obligation of deletion to all recipients to whom the personal data has been provided in this context. Proof of the deletion of personal data and the communication of this obligation to delete personal data to all recipients will be recorded in a summary document at the time of implementation and transmitted to the Contentious Chamber and the complainant. The deletion of personal data and the communication of this obligation to delete personal data to all recipients, including the preparation and transmission of the document, must take place within one month after the formal settlement decision has been made."

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The Contentious Chamber rejects this request for the following reason. Based on the information available in the administrative file, the complainant did not address the data controller regarding the alleged violation of her rights. The Contentious Chamber therefore considers that it is not appropriate, in this case, to propose such a condition, let alone to issue an order regarding this to the settling party. The complainant is of course free to address any data controller with respect to which she can exercise her rights under the applicable legislation.

26.

Fifthly, the complainant requests the imposition of an administrative fine as part of the settlement "with regard to Article 83, paragraph 1, of the GDPR."

•

The Contentious Chamber rejects this request for the following reason. The imposition of an administrative fine is a competence that can be exercised by the Contentious Chamber under Article 100, §1, 13° of the LCA. In this sense, no administrative fine as requested by the complainant can be imposed at this stage before the substantive processing under Article 95 of the LCA. It is true that Article 107 of the LCA indicates that the legislator intended for settlements—without specifying whether this can also be done under Article 95 of the LCA—to also allow for the collection of sums of money, but this is not a condition of the settlement instrument, as the Contentious Chamber has already indicated in the settlement proposal. The settlement aims to achieve a general resolution of the complainant's grievances, without the need for it to be sanctioned. The Contentious Chamber emphasizes the efficiency of the process in this regard.

27.

Sixthly, the complainant requests that the settlement decision "will also include the fact that the responsible party [settling party] waives any civil or other claims related to the formal settlement decision, for example, but not limited to, the possibility of negative publicity regarding this formal settlement decision."

•

The Contentious Chamber rejects this request for the following reason. This is not an essential request in light of the grievances raised by the complainant in her complaints.

28.

Seventhly, the complainant requests that the settlement decision be published on the website of the Data Protection Authority.

•

The Contentious Chamber can accommodate this request, through Section III of this decision.

III. Publication of the Decision

29.

Given the importance of transparency regarding the decision-making process of the Contentious Chamber, this settlement decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the complainant be directly communicated, as they are not relevant.

30. However, the Contentious Chamber chooses to publish the names of the complainant's representative and the settling party. Indeed, it is in the public interest that citizens can be informed, in the most transparent manner possible, about settlement procedures that lead to (visual) changes on frequently visited websites, such as the disputed sites. Indeed, journalistic publications on these

websites are inherently aimed at a broad audience, and visitors to these sites have an interest in being informed about data protection-related aspects. For the sake of completeness, the Contentious Chamber emphasizes that the complainant's representative himself has publicized the complaints.
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In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be lodged, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant. Such an appeal may be introduced by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(signed) Hielke HIJMANS
President of the Litigation Chamber

7 The application must contain, under penalty of nullity:

- 1° the indication of the day, month, and year;
- 2° the name, first name, and address of the applicant, as well as, where applicable, their capacity and national register number or business number;
- 3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;
- 4° the subject and a brief summary of the grounds for the application;
- 5° the indication of the judge who is seized of the application;
- 6° the signature of the applicant or their lawyer.

8 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed with the registry.

FOR THESE REASONS,

The Litigation Chamber of the Data Protection Authority decides:

- under Article 95, § 1, 2° of the LCA, to validate the transaction as accepted by the party in transaction on November 17, 2023, subject to the conditions set and specified in this decision and its annex.

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Annex – proposal for transaction

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Your references

Our references

Annex(es)

Date

NOYB: C-062-11 | C-062-01

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1

20/10/2023

Subject: Application of Article 95, § 1, 2° of the LCA - Proposal for transaction in the complaint file of Ms. X regarding the use of cookies by Group IPM on its websites <https://www.lalibre.be/> and <https://www.dhnet.be/>

Dear Sir/Madam,

The Litigation Chamber first refers to the letter it previously sent to the defendant and the complainant, informing them of its intention to send a proposal for transaction in the ongoing case. This document contains the said proposal for transaction. Given the significant volume of cases awaiting examination by the Litigation Chamber, which results in considerable delays in processing all cases, the Litigation Chamber has decided, under Article 95, §1, 2° of the law establishing the Data Protection Authority (hereinafter "LCA"), to explore the possibility of a proposal for transaction in the case referred to above ("proposal for transaction") through this letter. Furthermore, the Litigation Chamber takes into account

the fact that it is handling –

9 Registered letter dated September 21, 2023.

10 M.B., January 10, 2018.

Litigation Chamber

BY EMAIL

To the attention of SA Group IPM,

[...]

Represented by Me Frédéric DECHAMPS

whose office is located [...]

via the email address: [...]

Defendant

BY EMAIL

To the attention of NOYB – European Center for Digital Rights,
representing Ms. X

via the email address: [...]

Complainant

Secretariat

T: +32 (0)2 274 48 56

E-mail: litigationchamber@apd-gba.be

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currently – a large number of complaints regarding cookies. Although the issue of "cookies" is a priority¹¹ for the Data Protection Authority, the Litigation Chamber must exercise careful selection of the cases to be addressed to ensure that it can tackle various matters relevant to society with the required diligence. In this regard, the Belgian legislator has emphasized the need for the Litigation Chamber to be able to act selectively in order to ensure an effective implementation of its powers.¹²

This proposed settlement is made without any prejudicial acknowledgment and does not bind the Litigation Chamber regarding any position it may adopt in the event of a refusal of said proposal. If the party to whom this settlement proposal is addressed expressly refuses it, the Litigation Chamber will continue the proceedings. In the event of findings of violations, the Litigation Chamber will be able to exercise the sanctioning powers provided for by European¹³ and Belgian¹⁴ law.

In this case, the Litigation Chamber retains the possibility to pursue the matter otherwise in the event of a refusal of the proposal or if it is withdrawn by the Litigation Chamber itself.

If the party to whom the settlement proposal is addressed expressly refuses this proposal, the Litigation Chamber will continue the proceedings on the merits and will handle the case otherwise than by way of a settlement.

a) Procedural situation of the settlement proposal

The settlement proposal presented here falls within the framework of the "preliminary procedure prior to the substantive decision" before the Litigation Chamber, as envisaged by the legislator.¹⁵

Therefore, the Litigation Chamber does not take a position here and now regarding the necessity of investigative measures¹⁶ conducted by the Inspection Service of the DPA nor on the question of the necessity to subsequently pursue the case in accordance with the provisions of Article 95 of the LCA.

Given the nature of the procedure before the Litigation Chamber of the Data Protection Authority, it should be emphasized that the "settlement" provided for under Article 95,

¹¹ See the press release of the Data Protection Authority on this subject, accessible via: <https://www.autoriteprotectiondonnees.be/lapd-definit-ses-priorites-pour-lannee-2023>.

12 The House of Representatives, Explanatory Memorandum in the draft law establishing the Data Protection Authority, Doc. 2648/001 (Session of the 54th legislature), available via: <https://www.dekamer.be/kvvcr/showpage.cfm?section=/flwb&language;=fr&cfm;=/site/wwwcfm/flwb/flwbn.cfm?lang=N&le gislat;=54&dossierID;=2648, 51>; see also: E. Degraeve, "Title 11. Control Authority" in C. DE TERWANGNE and K. ROSIER, *The Data Protection Regulation (GDPR) – 1st edition*, Larcier, 2018, (593)607: "[The control authority] can thus exercise its control missions and assess the follow-up to be given to any complaints that are addressed."

13 See Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

14 See also Article 100 of the LCA.

15 See section 6.3.2. and Articles 94-97 of the LCA.

16 Cf. Article 94, 1° and 2° of the LCA; also compare the following paragraph in the notification letter dated 21/09/2023 to the parties: "This notification interrupts the 30-day period referred to in Article 96, § 1 of the LCA for referring to the Inspection Service until the moment the Litigation Chamber finds that the settlement proposal does not lead to or cannot lead to a genuine settlement."

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§1, 2° of the LCA cannot be assimilated to a "transaction" in the sense of criminal law.¹⁷ Indeed, the transaction in the sense of the LCA has a sui generis character.

Furthermore, the Contentious Chamber mentions the specific facts, situating them in time and space, on the basis of which the proposal for a transaction is made (*infra*). Although, as previously specified, the Contentious Chamber does not rule *hic et nunc* on the existence of violations, it must, however, formulate the proposal for a transaction based on elements presented in the file. These are the elements perceived as offensive by the complainant. The proposal for a transaction therefore concerns the facts, the period, and the context (technical), with facts not covered by this period and context not being included in the transaction.¹⁸ The disputed period concerns only the time between the date of filing the complaint and the date of the formal decision of transaction following this proposal for a transaction.

In general, the Contentious Chamber frames the transaction procedurally as follows:

1.
The transaction provided for by the LCA is a transaction between:
 - on the one hand, the Contentious Chamber which commits to ending the procedure, by waiving, among other things, the potential imposition of corrective measures,
 - and, on the other hand, the defendant who commits to paying a sum and/or complying with certain conditions.
2. A transaction generally implies an acknowledgment of the facts by the party transacting, but is not an acknowledgment of a violation of the law in force.
3. The scope of the transaction is in all cases limited to the facts and deadlines expressly mentioned in the proposal for a transaction or the (decision of) transaction itself.
4. The complainant is heard when concluding any transaction following a complaint.¹⁹ The complainant is heard regarding their viewpoint on the use of the transaction instrument and on the content of the proposal for a transaction. The complainant has the opportunity to express their position on the proposal for a transaction no later than 14 days after receiving it. This period does not exclude the possibility for both parties to obtain clarifications regarding the proposal for a transaction in writing or orally (*infra*).

¹⁷ See in particular Articles 216bis and 216ter of the Code of Criminal Procedure ("CIC") regarding the extinction of public action for certain offenses subject to the fulfillment of certain conditions (respectively the payment of a sum of money and the execution of measures and compliance with

conditions); A. RIGLOLET, *Transaction Contract*, Larcier, Brussels, 2021; A. RAES, T. VAN WYNSBERGE, S. DE KEULENAER, E. DEVEUX, K. DECRAMER, A. DELADRIERE, "The expanded amicable settlement: a 'value added' or 'win-win' situation? Evaluation of practice.", *Panopticon*, no. 36(2), 2015, (88); M. FERNANDEZ-BERTIER and N. VAN DER EECKEN, "The expanded criminal transaction declared unconstitutional: towards a motivation of the transaction and sufficient and effective judicial control", *Business Criminal Law*, 2016, no. 3, (213)213.

18 In this sense, the principle of *ne bis in idem* does not apply to facts that do not fall within this scope.

19 In the ratio legis of Article 77 of the GDPR, the complainant has a broader role regarding transaction procedures before other regulators, see for example the simple communication to the complainant in the transaction procedure before the Belgian Competition Authority, cf. Article IV.59 in fine of the Code of Economic Law of February 23, 2013 (M.B. 29/03/2013).

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5. The transaction is formalized by a transaction decision, which transparently outlines the course of the procedure prior to the transaction, and explicitly includes the terms of the proposal for a transaction as well as the terms of the transaction ultimately negotiated (principally referring to the proposal for a transaction annexed to the final transaction decision).

6. All concerned parties retain the right to comment, in principle in writing, on the proposal for a transaction and its content.

7. An unaccepted or otherwise unsuccessful transaction does not affect the continuation of the case and does not impact any potential alternative handling of the case.

b) Substantive conditions of the proposal for a transaction.

b.1. Complaint against "La Libre" of July 18, 2023

b.1.1. First grievance of the complainant in their complaint of July 18, 2023

The first grievance of the complainant is described by the complainant as follows: "Violation of type 1: no 'refuse' option at the first level of information of the cookie banner."

In support of this grievance, the complainant attaches the following two screenshots:

1.

Complaint, annex 2:

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2. Complaint, Annex 3:

Relevant *prima facie* elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board ("EDPB")²⁰ and the press release²¹ from the DPA on this matter. An excerpt from the press release:

The absence of a "reject all" button at the same level as the "accept all" button. The majority of data protection authorities, including the DPA, have considered this to be a shortcoming and that a user of a website should be able to access the option to consent to or refuse the deposit/read of cookies on their device simultaneously.

2. The DPA's "cookie checklist"²²:

I do not foresee a button "accept all cookies" (or similar) without providing at the same "level" a button "reject all non-essential cookies" (or similar).

First condition of the transaction proposal:

²⁰ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

²¹ Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-n>

on-conformes.

22 You will find, attached to this transaction proposal, a copy of this “cookie checklist”; the document is also accessible via the DPA's website:

<https://www.autoriteprotectiondonnees.be/publications/checklist-cookies.pdf>.

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The defendant provides on the “La Libre” website a “reject all” option at the location currently indicated as “accept and close,” within one month from the date of the transaction decision, or implements an equivalent practice within the same timeframe. The technical adjustments made by the defendant for this purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. The technical implementation, as well as the preparation and transmission of the document reflecting the implementation, must be completed within one month from the transaction decision.

b.1.2. Second complaint of the complainant in their complaint of July 18, 2023

Second complaint of the complainant: “Type 2 violation: Misleading button colors”

In support of this complaint, the complainant attaches the following two screenshots:

1. Complaint, Annex 2:

2. Complaint, Annex 3:

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Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board (“EDPB”)²³ and the press release²⁴ from the DPA on this matter.

An excerpt from the press release:

Misleading design. The task force drew attention to various types of misleading practices in terms of the layout of the banner.

An excerpt from the report of the EDPB working group:

To assess the compliance of a banner, a case-by-case check must be conducted to ensure that the contrast and colors used are not manifestly misleading to users and do not lead to involuntary and therefore invalid consent on their part. Consequently, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features manifestly contrary to the provisions of the directive on privacy and electronic communications have been identified.

²³ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

²⁴ Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

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2. The

“cookie checklist”

of the DPA:

I do not use techniques that could be classified as “deceptive design”²⁵ (e.g., incentivizing through the use of color).

Second condition of the settlement proposal:

The defendant commits to ensuring that the option behind which an option “reject all” is hidden –

following the potential acceptance of condition 1 of this settlement proposal – is not less (visually) appealing than the partial or total acceptance of the installation of cookies that are not strictly necessary, within one month from the settlement decision. The technical adjustments made by the defendant for this purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. Both the technical implementation and the preparation and transmission of the document reflecting the implementation will be carried out within one month from the settlement decision.

b.1.3. Third complaint of the complainant in their complaint of July 18, 2023

Third complaint of the complainant: “Type 3 violation: It is not as easy to withdraw consent as it is to give it”

In support of this complaint, the complainant attaches the following screenshot:

Complaint, annex 5:

25

See also our press release, available via the following link:

<https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

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Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board (“EDPB”)²⁶ and the press release²⁷ of the DPA on this matter.

An excerpt from the report of the EDPB working group:

In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and Article 5(3) of the ePrivacy Directive, three additional cumulative conditions are mandatory (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as giving consent.²⁸

2. The

“cookie checklist”
of the DPA:

I provide a mechanism by which it is as easy to withdraw consent as it is to give it, such as by placing a clearly visible link or button

²⁶ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

²⁷

Press release of the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

²⁸ Original English text: “In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and under Article 5(3) ePrivacy Directive, three additional cumulative conditions are mandatory (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as to give consent.”

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clearly visible allowing the management of cookie settings and withdrawing consent with a single click; I ensure that this withdrawal of consent has the desired effect and that the cookies concerned are not simply no longer placed in the future.

I ensure that this withdrawal of consent has the expected effect and that it does not merely result in the

cookie no longer being placed in the future;

Third condition of the settlement proposal:

The defendant party commits to developing and implementing, within one month, a mechanism on the "La Libre" website that complies with the requirements defined in the aforementioned policy documents, aiming to achieve an equivalent outcome. The data controller also guarantees that the consent withdrawal procedure (the withdrawal of consent) will not require more steps (in terms of "clicks") than those required to give consent. This will be done by following an equivalent number of steps from the moment the end user reaches the cookie settings page, which must be clearly accessible from all pages of the website in question. All technical modifications made by the defendant party for this purpose must be recorded in a summary document, which will be prepared during implementation and transmitted to the Litigation Chamber and the complainant. The implementation of these technical modifications, as well as the preparation and transmission of the summary document, must be completed within one month from the settlement decision.

b.1.4. Fourth complaint of the complainant in their complaint of July 18, 2023

Fourth complaint of the complainant: "Type 4 violation: Reference to legitimate interest"

In support of this complaint, the complainant attaches the following screenshot:

Complaint, annex 4:

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Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1. The viewpoint of the working group of the European Data Protection Board ("EDPB")²⁹ and the press release³⁰ from the DPA on this matter.

An excerpt from the DPA's press release:

Legitimate interest. Some websites rely on legitimate interest, rather than consent, for data processing subsequent to the placement or reading of cookies. The report reminds that legitimate interest cannot serve as the legal basis for the placement of cookies themselves, and that if the placement or reading of cookies does not comply with the ePrivacy Directive, the subsequent processing that results cannot comply with the GDPR.

2. The DPA's "cookie checklist":

a. I have checked the categorization of "essential technical cookies"³¹ (such as those for load balancing);

²⁹ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

³⁰ Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

³¹ Article 10/2, § 2 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data ("framework law"): "the technical storage of information or access to information stored in the terminal equipment of a subscriber or user only for the purpose of transmitting a communication over an electronic communications network" (own emphasis).

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b. I have checked the categorization of "strictly necessary functional cookies" (such as cookies for temporarily storing language choice, cookie preferences, or cart content). This includes only cookies that are strictly necessary to provide a service³² explicitly requested by the "visitor";

c. I have ensured that no other cookies than those above are placed without obtaining prior valid consent from the "visitor".

Fourth condition of the settlement proposal:

The defendant commits to using legitimate interest as a legal basis only in the case of placing strictly necessary technical or functional cookies. The defendant also ensures that the associated display to the website visitor meets transparency requirements, and therefore does not engage in practices involving the use of techniques that could be classified as "deceptive design"³³ - also note that the complaint in this case generally addresses misleading cookie banners and "dark patterns"³⁴. When the website visitor does not give consent to the installation of a particular cookie - for cookies requiring consent - the defendant commits not to invoke legitimate interest to continue installing these cookies. To this end, the data controller prepares a document, at the time of the technical implementation of this (these) adaptation(s), showing the display of cookies that it still (potentially) places on the visitor's device at that time based on legitimate interest. This document is then submitted to the Litigation Chamber and the complainant. The implementation, including the preparation and transmission of the document, must take place within one month after the settlement decision has been made.

b.2. Complaint against "DHnet" dated July 18, 2023

b.2.1. First grievance of the complainant in their complaint dated July 18, 2023

³² In principle, this does not include visitor counting, see also page 10 of Opinion 04/2012 of the Article 29 Working Party on data protection: https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2012/wp194_en.pdf "While they are often considered as a 'strictly necessary' tool for website operators, they are not strictly necessary to provide a functionality explicitly requested by the user (or subscriber). In fact, the user can access all the functionalities provided by the website when such cookies are disabled." Some controllers (in other Member States) adopt the position that the placement or obtaining access to such cookies - under certain strict conditions - falls outside the requirement for consent. This is sometimes the result of an adaptation of national legislation (this exception has then been explicitly added), sometimes of national case law.

³³ See also our press release, available via the following link: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

³⁴ Compare the documents of the Authority listed in section b.1.2.

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The first grievance of the complainant is described by the complainant as follows: "Type 1 violation: no 'refuse' option at the first level of information of the consent banner."

In support of this grievance, the complainant attaches the following two screenshots:

1. Complaint, Annex 2:

2. Complaint, Annex 3:

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

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1.

The viewpoint of the working group of the European Data Protection Board ("EDPB")³⁵ and the press release³⁶ from the Data Protection Authority (DPA) on this matter. An excerpt from the press release:

The absence of a "reject all" button at the same level as the "accept all" button. The majority of data protection authorities, including the DPA, have considered this to be a shortcoming and that a user of a website should be able to access the option to consent to or refuse the placing/reading of cookies on their device simultaneously.

2. The DPA's "cookie checklist":

I do not provide an "accept all cookies" button (or similar) without providing at the same "level" a "reject all non-essential cookies" button (or similar).

Fifth condition of the settlement proposal:

The defendant shall provide on the "DHnet" website a "reject all" option at the location currently

indicated as "accept and close," within one month from the date of the settlement decision, or implement an equivalent practice within the same timeframe. The technical adjustments made by the defendant for this purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. The technical implementation, as well as the preparation and transmission of the document reflecting the implementation, must be completed within one month from the settlement decision.

b.2.2. Second complaint of the complainant in their complaint dated July 18, 2023

Second complaint of the complainant: "Type 2 violation: Misleading button colors."

In support of this complaint, the complainant attaches the following two screenshots:

35 In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

36 Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

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1. Complaint, annex 2:

2. Complaint, annex 3:

Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

1.

The viewpoint of the working group of the European Data Protection Board ("EDPB")³⁷ and the press release³⁸ from the DPA on this matter.

An excerpt from the press release:

Misleading design. The task force drew attention to various types of misleading practices in terms of the layout of the banner.

37 In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

38 Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

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An excerpt from the report of the EDPB working group:

To assess the compliance of a banner, a case-by-case check must be carried out to ensure that the contrast and colors used are not obviously misleading to users and do not lead to involuntary and thus invalid consent on their part. Consequently, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features that are manifestly contrary to the provisions of the Privacy and Electronic Communications Directive have been identified.

2. The DPA's "cookie checklist":

I do not use techniques that could be classified as "deceptive design"³⁹ (e.g., encouragement through the use of color).

Sixth condition of the settlement proposal:

The defendant commits that the option behind which a "reject all" option is hidden – following the potential acceptance of the fifth condition of this settlement proposal – is not less (visually) attractive than the partial or total acceptance of the installation of cookies that are not strictly necessary, within one month from the settlement decision. The technical adjustments made by the defendant for this

purpose will be recorded in a summary document at the time of implementation and transmitted to the Litigation Chamber and the complainant. Both the technical implementation and the preparation and transmission of the document reflecting the implementation will be completed within one month from the settlement decision.

b.2.3. Third complaint of the complainant in their complaint dated July 18, 2023

Third complaint of the complainant: "Type 3 violation: It is not as easy to withdraw consent as it is to give it."

In support of this complaint, the complainant attaches the following screenshot:

Complaint, annex 5:

39 See also our press release, available via the following link: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

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Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

3. The viewpoint of the working group of the European Data Protection Board ("EDPB")⁴⁰ and the press release⁴¹ from the DPA on this matter.

An excerpt from the report of the EDPB working group:

In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and under Article 5, paragraph 3, of the ePrivacy Directive, three additional cumulative conditions are mandatory: (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as to give consent.⁴²

4. The DPA's "cookie checklist":

I foresee a mechanism by which it is as simple to withdraw consent as it is to give it, such as by placing a clearly visible link or button allowing the management of cookie settings and withdrawal of consent with a single click;

I ensure that this withdrawal of consent has the desired effect and that the cookies in question are not simply deposited in the future.

I ensure that this withdrawal of consent has the expected effect and that it does not merely result in the cookie no longer being placed in the future;

Seventh condition of the settlement proposal:

The defendant party commits to develop and implement, within one month, a mechanism on the "DHnet" website that complies with the requirements defined in the aforementioned policy documents, aiming to achieve an equivalent result. The data controller also guarantees that the procedure for revoking consent (the withdrawal of consent) will not require more steps (in terms of "clicks") than those required to give consent. This will be done by following an equivalent number of steps from the moment the end user reaches the cookie settings page, which must be clearly accessible from all pages of the website in question. All technical modifications made by the defendant party for this purpose must be recorded in a summary document, which will be prepared during implementation and transmitted to the Contentious Chamber and the complainant. The implementation of these technical modifications, as well as the preparation and transmission of the summary document, must be completed within one month from the date of the settlement decision.

b.1.4. Fourth complaint of the complainant in their complaint dated July 18, 2023

Fourth complaint of the complainant: "Type 4 violation: Reference to legitimate interest"

In support of this complaint, the complainant attaches the following screenshot:

Complaint, Annex 4:

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Relevant prima facie elements drawn from the policy positions and documents of the Data Protection Authority.

3. The viewpoint of the working group of the European Data Protection Board ("EDPB")⁴³ and the press release⁴⁴ from the DPA on this matter.

An excerpt from the DPA's press release:

Legitimate interest. Some websites rely on legitimate interest, rather than consent, for data processing subsequent to the placing or reading of cookies. The report reminds that legitimate interest cannot serve as the legal basis for the placing of cookies themselves, and that if the placing or reading of cookies is not compliant with the ePrivacy Directive, the subsequent processing that results from it cannot be compliant with the GDPR.

4. The DPA's "cookie checklist":

⁴³ In English, Report of the work undertaken by the Cookie Banner Taskforce, accessible here: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en.

⁴⁴ Press release from the DPA, February 10, 2023, accessible here: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/10/bannieres-cookies-ledpb-publie-des-exemples-de-pratiques-non-conformes>.

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- a. I have verified the categorization of "essential technical cookies"⁴⁵ (such as those for load balancing);
- b. I have verified the categorization of "strictly necessary functional cookies" (such as cookies for temporarily storing the language choice, cookie preferences, or the content of the shopping cart). This includes only cookies that are strictly necessary to provide a service⁴⁶ explicitly requested by the "visitor";
- c. I have ensured that no other cookies than those mentioned above are placed without obtaining prior valid consent from the "visitor".

Eighth condition of the settlement proposal:

The defendant commits to using legitimate interest as a legal basis only in the case of placing strictly necessary technical or functional cookies. The defendant also ensures that the associated display to the website visitor meets transparency requirements, and therefore does not engage in practices involving the use of techniques that could be classified as "deceptive design"⁴⁷ - also note that the complaint in this case generally addresses misleading cookie banners and "dark patterns".⁴⁸ When the website visitor does not give consent to the installation of a particular cookie - for cookies requiring consent - the defendant commits not to invoke legitimate interest to continue installing these cookies. To this end, the data controller prepares a document, at the time of the technical implementation of this (these) adaptation(s), showing the display of cookies that it still (potentially) places on the visitor's device at that time based on legitimate interest. This document is then transmitted to the Contentious Chamber and the complainant. The implementation, including the preparation and transmission of the document, must take place within one month after the settlement decision has been made.

⁴⁵ Article 10/2, § 2 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data ("framework law"): "the technical storage of information or access to information stored in the terminal equipment of a subscriber or end user, for the sole purpose of carrying out the transmission of a communication over an electronic communications network" (emphasis added).

⁴⁶ In principle, this does not include visitor counting; see also page 10 of Opinion 04/2012 of the Article 29 Working Party on data protection: https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2012/wp194_en.pdf "While they are often considered as a 'strictly necessary' tool for website operators, they are not strictly necessary to provide a functionality explicitly requested by the user (or subscriber). In fact, the user can access all the functionalities provided by the website

when such cookies are disabled.” Some controllers (in other Member States) adopt the position that placing or obtaining access to such cookies - under certain strict conditions - falls outside the requirement for consent. This is sometimes the result of an adaptation of national legislation (this exception has then been explicitly added), sometimes of national case law.

47 See also our press release, available via the following link: <https://www.autoriteprotectiondonnees.be/citoyen/actualites/2023/02/24/deceptive-design-patterns-comment-les-reconnaitre-et-les-eviter-sur-les-reseaux-sociaux>.

48 Compare the documents of the Authority listed in section b.2.2.

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Written and Oral Exchanges with the Parties

c.1. Written Exchanges

The settlement proposal marks the starting point of the settlement procedure. However, the terms of this proposal may be clarified or adjusted during the settlement procedure, particularly if such adjustments lead to improvements regarding data protection legislation. Such requests do not automatically result in an extension of the deadline.

In principle, the parties submit their requests in writing to the Contentious Chamber if they deem it necessary to make adjustments to the terms of the settlement proposal. It is up to the Contentious Chamber to make adjustments to the settlement proposal based on the communications from the parties.

In this regard, a constructive attitude from the parties is encouraged. The Contentious Chamber expects the requests to be reasonable and proportionate. When, in the opinion of the Contentious Chamber, the requests suggest that a settlement is unlikely or improbable, this may lead to the withdrawal of the settlement proposal.

c.2. Oral Exchanges

To facilitate the efficient conduct of the settlement procedure, the parties have the option to request an oral discussion regarding the settlement proposal. It is important to note that this option is offered as a courtesy, and the Contentious Chamber proposes it in order to ensure the efficiency of the procedure.

A record will be drawn up at the end of the oral discussion, generally for the purpose of simply noting that the oral explanation took place.

Both parties are free to participate in the oral discussions organized by the Contentious Chamber. It is essential to emphasize that these discussions are confidential, and consequently, the content of the discussions may not be disclosed to third parties under any circumstances.

49 Engaging in discussions aimed at reaching a settlement is a known legal practice in the regulatory landscape, particularly compare the procedure before the Belgian Competition Authority in Articles IV.55 and following ("Sub-section 4 - Settlement Procedure") of the Economic Law Code of 28/02/2013 (B.S. 29/03/2013) and the mention of such discussions in this code.

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c) Deadline

Group IPM has 30 days from the receipt of this settlement proposal to indicate whether it accepts it or not. The (representative of the) complainant has the opportunity to express their opinion on the initial settlement proposal and the conditions arising therefrom within 14 days from the receipt of this letter.

d) Existence of Other Data Controllers and/or Subcontractors

This settlement proposal is addressed solely to Group IPM. It does not address whether other parties may be responsible for the potential violations that led to this settlement proposal, nor to what extent.

e) Validation of the Settlement

If the settlement proposal results in a formal settlement decision due to the explicit acceptance or the failure to respond by the party to whom it is addressed within the aforementioned deadline, an appeal may be filed by the "aggrieved party."

It is important to note that the final settlement does not limit the rights of individuals who may be affected [ERRATUM] to claim damages before a civil court based on, among other things, Article 82 of the GDPR.

f) Appeal Against the Settlement Proposal

In accordance with Article 108, § 1 of the LCA, an appeal against this decision proposing a settlement may be filed, within thirty days from its notification, with the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant party. Such an appeal may be filed by means of an interlocutory application that must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

51 The application contains, under penalty of nullity:

7° the indication of day, month, and year;

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filed with the registry of the Court of Markets in accordance with Article 1034quinquies of the Judicial Code, or

via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

Please accept, Madam, Sir, the assurance of my highest consideration.

Hielke Hijmans

President of the Litigation Chamber

8° the name, first name, residence of the applicant, as well as, if applicable, their qualifications and national registration number or

business number;

9° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

10° the subject and a brief summary of the grounds of the application;

11° the indication of the judge who is seized of the application;

12° the signature of the applicant or their lawyer.

52 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.